

CV-26-001432 CARLOS, JUAN vs TEEPLES PLUMBING & DRILLING INC – Defendant Teeples Plumbing & Drilling, Inc’s Demurrer to Plaintiff’s First Amended Complaint – SUSTAINED, with leave to amend.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: The Court exercises its discretion to decline to consider Plaintiff's untimely opposition herein. Based on its review of the moving papers, the Court finds that the demurrer should be sustained in its entirety. (Code Civ. Proc. § 430.10(e).) The allegations fail to plead statutory liability with the requisite specificity, particularly as to the elements of Defendant's knowledge and intent, Meta's underlying violation(s), and/or Plaintiff's cognizable damages, where applicable. Moreover, the Court notes the absence of any binding California law applying the provisions of Penal Code §§ 631(a) or 638.51 to instances of internet-based activities such as those alleged herein. Therefore, the Court harbors significant doubts about Plaintiff's ability to plead a viable claim under those statutes. Nevertheless, the Court will grant leave to amend in this instance. Plaintiff shall submit his Second Amended Complaint within 20 days. The following are the tentative rulings for cases calendared before Judge David Hood in Department 24:

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